

Satyapal Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 March 2014 · Writ-C No. 14399 of 2014 · **Writ disposed; officer to examine bills and restoration within six weeks**

HEADNOTE

Consumer writ against a bill and for restoration after deposit on a temporary-disconnection notice disposed of without merits adjudication. Having perused Clauses 4.35 and 4.36 of the Electricity Supply Code, 2005, the Court directed the concerned officer to examine the grievance on billing and restoration (if supply had not been permanently disconnected) and pass an appropriate order within six weeks.

FACTUAL SUMMARY

Satyapal Singh, a consumer of U.P. Power Corporation Ltd., challenged a bill raised against him and sought restoration of his electricity connection. After a notice of temporary disconnection he deposited a certain amount, but the Corporation neither finalised the bill nor restored supply. He alleged the respondents had acted contrary to law. The writ was heard with counsel for the Power Corporation appearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.35

examination of bills and restoration after temporary disconnection

HOLDING

On a consumer's challenge to a bill and prayer for restoration after deposit following a temporary-disconnection notice, the Court, having perused Clauses 4.35 and 4.36 of the Electricity Supply Code, 2005, disposed of the writ by directing the concerned officer to examine the grievance as to bills and restoration of supply (if not permanently disconnected) and pass an appropriate order within six weeks. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Consumer writ against a bill and for restoration after deposit on a temporary-disconnection notice disposed of without merits adjudication.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED BILL AND ENTITLEMENT TO RESTORATION OF SUPPLY

Left to respondent No. 3 to examine and pass an appropriate order; no finding on whether Clauses 4.35 and 4.36 had been breached. ¶ 1